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SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF LOS ANGELES

SOUTHWEST COLLECTIONS, INC., AS
ASSIGNEE OF MIDGARD BANK

Plaintiff,

vs.

JESSIE HINTON, an individual:

Defendant.

) Case No.: 12-3-456789-1

) COMPLAINT FOR:

) 1. BREACH OF CONTRACT

) DEMAND: \$953.10

Plaintiff alleges:

BACKGROUND ALLEGATIONS

1. Plaintiff, Southwest Collections, Inc. ("Plaintiff"), is a successor in interest to original creditor, Midgard Bank, and authorized to collect debts in the State of California.
2. This court is the proper court because Plaintiff is informed and believes that Defendant Jessie Hinton ("Defendant"), is a resident of LOS ANGELES County, State of California.
3. Pursuant to California Civil Code §1788.58(a)(1), Plaintiff is a debt buyer as defined by California Civil Code §1788.50(a).
4. Plaintiff is the sole owner of the Account which forms the basis for this Complaint. Plaintiff's California Department of Financial Protection and Innovation (DFPI) license number: Plaintiff's California Debt Collector License Number 77899-10.

5. The debt at issue arises from a Consumer Credit Card account issued to Defendant by Midgard Bank under account number ending in XXXXXXXXXXXXX1357. Defendant defaulted on the obligation by failing to pay amounts due and owing.
6. Plaintiff purchased the debt from Midgard Bank on October 20, 2022.
7. Pursuant to Civil Code § 1788.58(a)(3-8), Plaintiff pleads the following facts:
- a. Plaintiff is the sole owner of the Account.
 - b. The charge-off date was 8/24/2022.
 - c. The balance at charge-off was \$953.10.
 - d. The date of last payment on the subject account was 12/23/2020.
 - e. The charge-off creditor name and address at the time of time of charge-off was Midgard Bank P.O. Box 51015 San Jose, CA 95045-1265.
 - f. The charge off creditor's account number associated with the debt at the time of charge off was XXXXXXXXXXXXX1357.
 - g. The debtor's name and last known address as it appears in the charge-off creditor's records were JESSIE HINTON, 8333 BOLTON ST, PASADENA, CA 91023-8434.
 - h. The names and addresses of all persons or entities that purchased the debt after charge off, including the plaintiff debt buyer:

Name	Address
Midgard Bank	P.O. Box 51015 San Jose, CA 95045-1265
Southwest Collections, Inc.	123 Eagle St Phoenix, AZ 85023-1023

8. Plaintiff has complied with Civil Code § 1788.52.
9. Pursuant to Civil Code §§ 2983.4 and 1717, Plaintiff is entitled to recover reasonable attorney's fees and costs incurred, or to be incurred, in this action based on the contract, in an amount to be determined by the Court.

1 CAUSE OF ACTION: BREACH OF CONTRACT

- 2 1. Plaintiff incorporates by reference each and every allegation set forth in the preceding
3 paragraphs as though fully set forth herein.
- 4 2. On or about 11/20/2019, Midgard Bank issued a Consumer Credit Card to Defendant, account
5 number ending in XXXXXXXXXXX1357.
- 6 3. Under the terms of the agreement, Midgard Bank agreed to provide Consumer Credit Card funds
7 to Defendant, who agreed to repay amounts advanced, including interest, fees, and other charges
8 pursuant to the agreement.
- 9 4. Defendant accepted the agreement by using the Account to make purchases and/or to take cash
10 advances and/or to make balance transfers and reaffirmed their obligation to repay through
11 subsequent use of the account.
- 12 5. Defendant breached the agreement by failing to make payments as agreed. The date of last
13 payment on the subject account was on December 23, 2020.
- 14 6. As a direct and proximate result thereof, Plaintiff has been damaged in the amount of \$953.10.

15
16 WHEREFORE, Plaintiff prays for judgment against the Defendant as follows:

- 17 1. For the damages in the principal amount of \$953.10;
- 18 2. For reasonable attorney's fees pursuant to statute;
- 19 3. For costs of suit incurred; and
- 20 4. For such other and further relief as the Court deems just and proper.

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22 Dated: 09/30/2025

By:

DOE LAW GROUP, LLP

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25 [X] Jordan Doe, Esq.
26 *Attorney for Plaintiff*
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